

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: D CASE NO: CV1700712

PRESIDING: HON. ANDREW E. SWEET

REPORTER:

CLERK:

PLAINTIFF: JESSICA DURAN
SABALVARRO

vs.

DEFENDANT: VIBRA HEALTH CARE, ET
AL

NATURE OF PROCEEDINGS: MOTION- LEAVE

RULING

This matter is continued to September 30, 2026 @ 9am in Department D.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202233

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: CHRISTOPHER MARKS

vs.

DEFENDANT: DENALI WATER
SOLUTIONS, LLC

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff's Amended Motion to Compel Further Written Responses to Request for Production of Documents and to Compel Production of Documents is GRANTED.

The parties appeared in court on August 21, 2026, on Defendant's ex parte application for an order shortening time, which was denied. The parties advised the court that they were in the process of meeting and conferring on the outstanding discovery issues given that the case is set for trial on January 20, 2027. The court did not receive an update declaration and proceeds with this order understanding that the discovery dispute remains unresolved.

Plaintiff's Motion to Compel Plaintiff Christopher Marks' Compliance with Responses to Defendant Denali Water Solutions, LLC's Requests for Production of Documents (Set One) is GRANTED. Plaintiff's Requests for Production of Documents Set No. One seeks to compel responses and production of documents responsive to Requests No. 1-36, 44-72, 74-80 and 82-1511, Requests omitted from the motion are Nos. 37-43, 73 and 81. The motions to compel are GRANTED

Meet and confer efforts began in January 2026, with Defendant agreeing to supplement responses in February. Defendant served initial objections to all Plaintiff's Requests for Production of Documents and served no documents with its objections on December 5, 2025. After the parties met and conferred, Defendant served supplemental written responses to the Request for Production of Documents on February 16, 2026. The plaintiff found the responses to be inadequate and continued meet and confer efforts through April 2026, before bringing the motions.

The dispute did not resolve with the assistance of the discovery facilitator, who was appointed on July 14, 2026.